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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiff,

v.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT; and DOES 1-5,

Defendants.

Case No. 8:25-cv-00191-SRM-KES

DEFENDANT THE VONS COMPANIES, INC.'S ADDITIONAL REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF ITS OPPOSITION TO PLAINTIFF'S MOTION FOR CLASS CERTIFICATION

Date: April 15, 2026
Time: 1:30 p.m.

Trial Date: Not Yet Set
Complaint Filed: February 6, 2025

TO THE CLERK OF THE UNITED STATES DISTRICT COURT FOR THE CENTRAL DISTRICT OF CALIFORNIA AND TO PLAINTIFF ROBERTO SANDOVAL CARRILLO AND HIS COUNSEL OF RECORD:

Pursuant to Federal Rule of Evidence 201, Defendant The Vons Companies, Inc. ("Vons") respectfully requests this Court take judicial notice of the following documents and information in support of its Opposition to Plaintiff's Motion for Class Certification on the basis that such information is not subject to reasonable dispute and is capable of accurate and ready determination by reference to sources who accuracy cannot be reasonably questioned:

Exhibit A – Request for Modifying the Conditions or Terms of Supervision, *U.S. v.* Sandoval, Case No. 16CR01694-001-JLS, Dkt. 141 (S.D. Cal. Sept. 14, 2026).

Rule 201 of the Federal Rules of Evidence Rule ("Rule 201") provides that a court may "judicially notice a fact that is not subject to reasonable dispute because it: (1) is generally known within the trial court's territorial jurisdiction; or (2) can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned." Fed. R. Evid. 201(b). Rule 201(d) states that the Court "may take judicial notice at any stage of the proceeding." This includes taking judicial notice after a matter is already briefed and taken under submission. *See Michael Abe v. AFCH, Inc., et al*, 2:20CV08193, 2021 WL 2209309 at *3, Dkts. 21, 25-27 (C.D. Cal. June 1, 2021). Further, a court "must take judicial notice if a party requests it and the court is supplied with the necessary information." Fed. R. Evid. 201(c). These conditions are satisfied herein, as set forth immediately below.

Courts may take judicial notice of matters of public record. *MGIC Indem. Corp. v. Weisman*, 803 F.2d 500, 504 (9th Cir. 1986). For example, courts may take judicial notice of "'[p]ublic records and government documents available from reliable sources on the Internet,' such as websites run by governmental agencies." *Hadley v. Kellogg Sales Co.*, 243 F.Supp.3d 1074, 1088 (N.D. Cal. 2017). Exhibit A is a federal court order that indicates Plaintiff remains on supervised release and recently violated the terms of his supervised

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release. The order was filed after Plaintiff's Motion for Class Certification was fully briefed and taken under submission (Dkt. 60).

These facts are matters of public record and are not reasonably subject to dispute. Judicial notice is appropriate under Federal Rule of Evidence 201(b)(2), as the accuracy of said information can be readily determined from sources whose accuracy cannot be reasonably questioned.

For the foregoing reasons, Defendant respectfully requests that the Court take judicial notice of Exhibit A above.

Dated: September 15, 2026

/s/ Robert Geiger
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